

November 30, 2024. (*Id.* at p. 7.) Plaintiff analogizes the situation here with the fact patterns in the cases *Martin-Bragg v. Moore* (2013) 219 Cal. App. 4th 367 and *Greenhut v. Wooden* (1982) 129 Cal.App.3d 64, and argues that those cases support consolidating the instant matter with the unlawful detainer matter as the issues here are similarly complex. (Motion, pp. 5-7.)

Defendant argues that the civil and unlawful detainer matters are factually different and involve different legal theories. (Opposition, p. 4.) Defendant further argues that the two cases relied on by Plaintiff are distinguishable from the present facts. (*Id.* at pp. 4-5.)

On reply, Plaintiff argues that Defendant only discussed the causes of action in the unlawful detainer and the instant case being different, not the facts, and that Plaintiff would be prejudiced if the unlawful detainer could move forward on its own. (Reply, pp. 2-3.) Plaintiff also argued that there would be no confusion from consolidating. (*Id.* at p. 3.)

The Court notes that the two main cases Plaintiff relies on, *Martin-Bragg v. Moore* (2013) 219 Cal. App. 4th 367, and *Greenhut v. Wooden* (1982) 129 Cal.App.3d 64, both deal with consolidating civil matters containing claims relating to title of real property with unlawful detainers. “The law affords substantial procedural rights to litigants in cases involving adjudication of complex issues of legal and beneficial title to property. Moore’s enjoyment of those rights was compromised by the trial court’s insistence on trying those complex issues using the summary procedures that are approved only for the determination of a landlord’s right to possession in straightforward unlawful detainer proceedings.” (*Martin-Bragg v. Moore* (2013) 219 Cal.App.4th 367, 394-395.) In *Greenhut*, the court stated, “[d]ue to the complexities of this case and the need to quiet title on the way to determining all of the issues, the most judicious approach would have been a consolidation of the three cases.” (*Greenhut v. Wooden* (1982) 129 Cal.App.3d 64, 69.)

Here, there are no issues involving title to real property, making *Martin-Bragg* and *Greenhut* distinguishable from the instant matter on that basis. Further, Plaintiff only seeks monetary damages in this lawsuit, not declaratory relief, not specific performance of any contract, not possession of any property. (Plaintiff’s First Amended Complaint, pp. 5-6, prayer for relief.) The unlawful detainer, in contrast, seeks possession of the property at issue.

Thus, although the cases have significant overlap—such as whether the lease was renewed and the validity of Defendant’s May 2025 attempt to terminate the lease—they both seek different remedies. This Court feels that the central issue here, whether the lease was renewed or not, and the validity of the alleged termination of the lease, may properly be litigated in an unlawful detainer case, and declines to exercise its discretion to consolidate the two cases at this time.

The Court notes that the pleadings in the instant matter are not yet settled, as Defendant has filed a demurrer and motion to strike that are set for hearing in mid-March. Further development of this case may merit the Court revisiting consolidation at a later date.

Ruling

The Court exercises its discretion to **deny** consolidation for the reasons stated herein, **without prejudice** to renewal of a consolidation motion if subsequent developments warrant.

7. 9:00 AM CASE NUMBER: C25-00430
CASE NAME: AFONSO INFANTE VS. VANESSA ADORABLE RALLONZA
HEARING IN RE: MOTION FOR RECONSIDERATION,RELIEF FROM ORDER
FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Afonso Infante's Motion for Reconsideration of the Court's ruling dated October 9, 2025 sustaining the Defendant Vanessa Adorable Rallonza's demurrer without leave to amend is **denied**.

Background

Plaintiff, Afonso Infante's complaint ("Plaintiff") alleged that, beginning in June 2020, he and defendant, Vanessa Marie Adorable Rallonza ("Defendant") entered into an "exclusivity agreement" by which defendant promised to "remain exclusively sexually involved with Plaintiff." (Complaint, ¶14.) In return, plaintiff promised to pay defendant \$100,000 per month. (*Ibid.*) He paid \$100,000 in cash in June 2020, intended to cover the period July 12, 2020 to August 11, 2020. In September, he paid another \$100,000 via wire transfer, intended to cover the period August 12, 2020 to September 11, 2020. Finally, in October 2020, plaintiff paid \$100,000 via wire transfer, intended to cover September 12, 2020 to October 11, 2020. (Complaint, ¶10.) Defendant breached the agreement because she was cohabitating with, and engaging in a sexual relationship with another individual, a fact she concealed and/or misrepresented. (Complaint, ¶11.) Plaintiff eventually discovered the other relationship and alleges defendant never intended to perform as agreed. (Complaint, ¶¶6-8, 11, 18.) Defendant requested that plaintiff pay the funds into an "irrevocable trust" which plaintiff appears to have interpreted to mean that he would be unable to cease payments. (Complaint, ¶¶6-9, 16.)

Plaintiff brought suit against defendant on February 24, 2025, alleging four causes of action: (1) Breach of Contract, (2) Fraud, (3) Unjust Enrichment, and (4) Restitution. In response, defendant filed the present demurrer, which plaintiff moved to strike. Plaintiff also filed an opposition to the demurrer based on the merits.

On July 23rd, the Court held a hearing on its tentative ruling issued the previous day. The tentative ruling denied plaintiff's motion to strike and continued the demurrer hearing. The continuance was based on the Court's request for additional briefing, and in order to allow additional time for parties to meet and confer. Neither party contested the substance of the ruling, but both stipulated to a different hearing date (September 3, 2025) based on plaintiff's representations that he was scheduled to have surgery.

Defendant's attorney filed a supplemental declaration on July 30, 2025 and a "supplemental demurrer" on August 8, 2025. Plaintiff has not filed any supplemental briefing, though he moved on August 11, 2025 to strike portions of defense counsel's supplemental declaration. That motion has been scheduled for hearing on November 26, 2025.

On September 2nd, through specially-appearing attorney, LoriAnn Owens, plaintiff moved *ex parte* for another continuance based on his unavailability due to being taken into custody in San Mateo County. Judge Weil granted the application and set a new hearing date of October 22nd, but later that day, the

tentative rulings for Department 16 posted for hearings to be held September 3rd. The continuance to October 22nd was noted in the tentative rulings. Defendant's counsel, Elizabeth Bertolino, timely contested the tentative ruling. Both Ms. Bertolino and Ms. Owens appeared on September 3rd to argue. Attorney Bertolino argued the continued hearing should not be set out so far, and that plaintiff had made misrepresentations to the Court, including but not limited to his allegedly having had surgery.

At the September 3rd hearing, the Court re-set the hearing to October 3rd instead of the 22nd, and requested any information concerning the pending criminal complaint. No information was submitted prior to October 3rd related to the criminal charges, but the hearing nonetheless proceeded as scheduled on October 3rd at 1:30 p.m.

On October 3, 2025, Plaintiff's counsel, Ms. Lori Ann Owens appeared by Zoom on behalf of plaintiff, Afonso Infante. Ms. Bertolino appeared in person for defendant, Vanessa Rallanza. Plaintiff's counsel informed the Court she appeared in "limited scope" and not for purposes of arguing the demurrer hearing. She limited her comments to having made unsuccessful efforts to arrange for a remote appearance by plaintiff from the jail. The Court heard argument from Ms. Bertolino, as well as testimony from a witness, Steven Nemec, Chief Administrative Officer of Swift Legal, concerning his contentions that certain documents constitute forgeries by plaintiff. While the latter was heard, the testimony does not relate to the merits of the demurrer and has not been considered with respect to the Court's discussion herein.

Defendant's Counsel represented to the Court and also submitted a declaration stating that Plaintiff had been arraigned on fifty two (52) Felony charges, including felony stalking of Ms. Rollanza, and many felonies related to filing false court documents and forging process server's signatures - other named victims, including process servers used in this case. His custody exposure is significant and Plaintiff is being held without bail, pending his trial. Plaintiff's Counsel, Lori Ann Owens, confirmed that he was incarcerated.

On October 9, 2025, the Court entered an order sustaining Defendant's Demurrer without leave to amend. Now, Plaintiff files this Motion for Reconsideration, among other things, requesting relief under Cal. Code of Civ. Proc. § 1008(a). He also sets for a claim for relief under various parts of the Cal. Code of Civ. Proc. that are inapplicable. (e.g., Cal. Code of Civ. Proc. §§ 473(d) vacatur, 128 (inherent power of the court to effectuate justice), and Local rules which permit omnibus request for relief.) The essence of Plaintiff's motion is that his absence was involuntary; that the Court admitted and/or considered improper evidence, and that the Court was biased. Plaintiff claims that he was incarcerated and was unable to attend the proceedings and denied due process; that he had a lack of notice due to mailing to a P.O. Box, and that there are newly discovered error of laws which permit this court to reconsider its ruling.

Analyses

Under Cal. Code of Civ. Proc § 1008(a):

When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order

and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212, Code Civ. Proc., § 1008. “A motion for reconsideration may only be brought if the party moving for reconsideration can offer ‘new or different facts, circumstances, or law which it could not, with reasonable diligence, have discovered and produced at the time of the prior motion. Cal. Code of Civ. Proc. § 1008, subd. (a); see *Jade K. v. Viguri* (1989) 210 Cal. App. 3d 1459, 1467, 258 Cal. Rptr. 907.) A motion for reconsideration will be denied absent a strong showing of diligence.” (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690; *Forrest v. State Of California Dept. Of Corporations* (2007) 150 Cal.App.4th 183, 202 disapproved of and overruled on unrelated grounds in *Shalant v. Girardi* (2011) 51 Cal.4th 1164, 1172 (footnote 3); *New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213; *Baldwin v. Home Sav. of America*. (1997) 59 Cal.App.4th 1192, 1199.)

A court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon “new or different facts, circumstances or law” that (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1499.) Disagreement with a ruling is not a new fact that will support the granting of a motion for reconsideration. (*Gilberd v. AC Transit, supra*, 32 Cal.App.4th 1494, 1500.) The moving party’s burden under Section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at trial. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213.)

Applied here, the Court finds that Plaintiff has failed to set forth new or different facts or circumstances or law that would require reconsideration. First, Plaintiff claims that he did not have notice of the continued hearing on the demurrer, as it was served to address listed in his pleadings as the address of record for service in this case. However, he was required to keep the Court apprised of any change of address for service of the Court’s orders or service of process. The record shows that did not file a change of address form when he was being held for pre-trial detention without bail. (He subsequently filed a Change of Address request on December 22, 2025, two months after the hearing.) It is Plaintiff’s responsibility to notify the Court of a change of address. This argument is unavailing and not credible, as Plaintiff admits that he received service of the demurrer through his P.O. Box and had already prepared a declaration in opposition of the demurrer and motion to strike. Moreover, Plaintiff retained Counsel to appear at the hearing on the Demurrer and was on notice of the hearing.

Second, Plaintiff was already incarcerated at the date of the initial hearing of the Demurrer, September 3, 2025 and retained counsel to represent him at the hearing on the demurrer, but limited her role to seeking a continuance. At his request, the Court continued the hearing on the demurrer to October 3, 2025 and ordered Counsel and Plaintiff make arrangements to appear at the continued hearing. Plaintiff, like many incarcerated parties, had retained an attorney to appear on his behalf, and had the right to appear via Zoom. The Court ordered Plaintiff’s counsel to make the necessary arrangements for the custodial facility to allow Plaintiff to have Zoom access and advised her that the Court was willing to sign necessary removal orders to make Plaintiff available for his hearing on

October 3, 2025. Plaintiff, again, did not appear at his hearing and, instead, his attorney appeared, representing that she was again appearing in “limited scope” and her client, Plaintiff, did not authorize to argue against the demurrer. The Court notes that this is the second time that Plaintiff retained counsel for this hearing, but specifically prohibited her from arguing the merits of the case that was already briefed. At the hearing, the Court ruled on the Demurrer, sustaining it without leave to amend. This is not a new fact or new law that requires this Court to reconsider its ruling.

Additionally, Plaintiff sets forth legal arguments that cite to *Marriage of Fletcher* (1996) 8 Cal.4th 67, 80, recognizing “sexless” marriages, and *Marvin v. Marvin* (1976) 18 Cal.3d 660, which purports to confirm that non-marital agreements may be enforceable. None of these cases are new law. Indeed, Fletcher was decided 30 years ago and Marvin was decided 50 years ago. Plaintiff also fails to cite to new facts that which he affirms could not, with reasonable diligence, have discovered and produced at the time of the prior motion. Accordingly, on this argument, plaintiff does not meet the standard set forth in Cal. Code of Civ. Proc § 1008 for reconsideration.

Plaintiff also claims that this judicial officer is biased against him, presumably because the Court had ruled against him. He makes a request for disqualification under Cal. Code of Civ. Proc § 170.1. To the extent that a challenge for cause is being made against this judicial officer, it not effective because it fails to comply with the provisions of 170.1. Moreover, as set forth above, disagreement with a ruling is not a new fact that will support the granting of a motion for reconsideration. (*Gilberd v. AC Transit, supra*, 32 Cal.App.4th 1494, 1500.) And, just because Plaintiff may disagree with the court’s procedural management or evidentiary rulings does not establish bias. See, In *Re Marriage of Tharp* (2010) 188 Cal.App.4th 1295, 1318 [ruling against a party, without more, is not bias]; *Andrews v. Agricultural Relations Bd.* (1981) 28 Cal.3d 781, 795-796 [even erroneous rulings do not establish bias where subject to appellate review].)

Finally, Plaintiff argues that he was deprived of due process because he was unable to secure his appearance to argue against the demurrer on October 3, 2026. Again, the Court continued the hearing on the demurrer twice in order to accommodate Plaintiff’s request. He did not make arrangements to appear via Zoom, and instead sent his attorney, Lori Ann Owens. Here, the Court considers the narrow issue of whether Plaintiff was deprived of due process when he was absent from the hearing, even though his attorney was present on his behalf.

In addressing the issue of due process, the Court of appeal in *In re Axsana S.* (2000) 78 Cal.App.4th 262 demonstrates some useful parallels to the instant proceeding. In *Axana S.*, the incarcerated father claimed a violation of due process when the juvenile court conducted a dispositional hearing on the dependency petition and denied him reunification services, while his attorney was present but he was absent. There, the Court of Appeal held that the father “received meaningful access to the courts through his appointed counsel. In dependency cases, as in other civil cases, personal appearance by a party is not essential; appearance by an attorney is sufficient and equally effective.” (Id. at p. 269; see also *In re Dolly D.* (1995) 41 Cal.App.4th 440, 445.

Applied here, although this is not a dependency case, like the father in *Axsana S.*, Plaintiff claims that he was denied due process by being precluded from making oral argument on the demurrer prosecuted by Defendant. However, his Counsel was present at the hearing. State courts have “repeatedly held that the due process rights of a prisoner who has been prohibited from participating in a custody hearing are not violated where the prisoner was represented by counsel at the hearing

and was neither denied an opportunity to present testimony in some form on his behalf nor denied the opportunity to cross-examine witnesses.” *Cook v. Boyd* (E.D.Pa. 1995) 881 F. Supp. 171, 175; see also *In re T.N.T.* (2002) 258 Ga. App. 396 [574 S.E.2d 444, 446–447].) Likewise, Plaintiff was not denied due process where he retained counsel to represent him at the hearing on the demurrer. The Court did not prohibit Plaintiff’s counsel from arguing at the Demurrer and from otherwise representing Plaintiff as his limited scope counsel. It was plaintiff who chose not to allow his attorney to present arguments on his behalf. Based on behavior demonstrated by Plaintiff in the past, the Court finds that this tactic of retaining counsel and directing counsel not to make arguments is further delay tactics designed to keep Defendant needless engaged in a case that has no merit.

Based on the foregoing, the Court finds that there is good cause to deny Plaintiff’s Motion for Reconsideration.

Ruling

Plaintiff’s Motion for Reconsideration is **denied**. Since the demurrer was sustained without leave to amend, this case is dismissed without prejudice.

8. 9:00 AM CASE NUMBER: C25-01776

CASE NAME: JOHN DOE VS. ETHAN BUCKLEY

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: BUCKLEY, ETHAN

TENTATIVE RULING:

The Court **continues** the hearing on Defendant Buckley’s demurrer to complaint to March 25, 2026 at 9:00 a.m.

9. 9:00 AM CASE NUMBER: C25-01916

CASE NAME: JODI MURPHY VS. WENDY WONG, MD

***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**

FILED RE PETER A. MEYER RE PETER A. MEYER

FILED BY: ZIMMER, INC.

TENTATIVE RULING:

Summary

Defendant Zimmer, et. al (“Defendant”) filed an Unopposed Notice of Hearing and Motion for order admitting Peter A. Meyer, Esq. as Counsel *Pro Hac Vice* for Defendant. The Motion is **granted**. No appearance is required at the February 11, 2026 hearing.

Background

On October 27, 20205, Defendant Zimmer, et. al (“Defendant”) filed an Unopposed Notice of Hearing and Motion for order admitting Peter A. Meyer, Esq. as Counsel *Pro Hac Vice* for Defendant (“Motion”). The Motion was supported by the Verified Application of Peter Meyers, Esq.